METRIC

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SUPERSEDING
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COMMERCIAL ITEM DESCRIPTION

CEREAL TREATS, MARSHMALLOW

The U.S. Department of Agriculture (USDA) has authorized the use of this Commercial Item Description (CID).

1. SCOPE. This CID covers marshmallow cereal treats, packed in commercially acceptable containers, suitable for use by Federal, State, local governments and other interested parties.

2. PURCHASER NOTES.

2.1 Purchasers *shall specify* the following:

- Flavor(s) of marshmallow cereal treats required (Sec. 3).
- When analytical requirements are different than specified (Sec. 6.1).
- When analytical requirements need to be verified (Sec. 6.2).
- Manufacturer's/distributor's certification (Sec 9.2) or USDA certification (Sec 9.3).

2.2 Purchasers *may specify* the following:

- Manufacturer's quality assurance (Sec 9.1 with 9.1.1) or (Sec 9.1 with 9.1.2).
- Packaging requirements other than commercial (Sec. 10).

3. CLASSIFICATION. The marshmallow cereal treats shall conform to the flavors in the following list which shall be specified in the solicitation, contract, or purchase order.

Flavors.

Flavor 1 - Original
Flavor 2 - Chocolate Chip
Flavor 3 - Chocolate Chocolate Chunk
Flavor 4 - Chocolate Pan Coated Candy
Flavor 5 - Chocolate Drizzle
Flavor 6 - Other

FSC 8920

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4. MANUFACTURER'S/DISTRIBUTOR'S NOTES. Manufacturer's/distributor's products *shall meet* the requirements of the:

- Salient characteristics (Sec. 5).
- Analytical requirements: *as specified by the purchaser* (Sec. 6).
- Manufacturer's/distributor's assurance (Sec. 7).
- Regulatory requirements (Sec. 8).
- Quality assurance provisions: *as specified by the purchaser* (Sec. 9).
- Packaging requirements other than commercial: *as specified by the purchaser* (Sec. 10).

5. SALIENT CHARACTERISTICS.

5.1 Processing. The marshmallow cereal treats shall be prepared and packaged in accordance with current good manufacturing practices (21 CFR Part 110).

5.2 Ingredients. The marshmallow cereal treats shall contain toasted rice cereal, marshmallow, and margarine or vegetable oil, and may contain fructose, rice syrup, corn syrup, lecithin, and any other FDA approved ingredient which will provide the sensory and functional properties required of the finished product.

5.3 Finished product. The delivered marshmallow cereal treats shall not be crushed, broken, or damaged.

5.3.1 Appearance. The marshmallow cereal treats shall contain pieces of toasted rice cereal in a glossy, pale colored marshmallow matrix except for Flavor 3, which shall have a moderately dark chocolate color throughout the product. The marshmallow cereal treats may contain chocolate chips, chocolate chunks, chocolate pan coated candy or chocolate drizzle as specified.

5.3.2 Odor and flavor. The marshmallow cereal treats shall have the sweet, sugary odor and flavor of marshmallow and an odor and flavor of the toasted rice cereal and flavoring (if any). There shall be no foreign odors or flavors such as, but not limited to burnt, scorched, stale, rancid, or moldy.

5.3.3 Texture. The marshmallow cereal treats shall be cohesive and crispy, yet soft, pliable, and chewy. The surface and interior of the marshmallow cereal treats shall have the rough texture of the toasted rice cereal, except for Flavor 3, which shall have a smooth undersurface coating of chocolate.

5.3.4 Foreign material. All ingredients shall be clean, sound, wholesome, and free from evidence of rodent or insect infestation.

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5.4 Age requirement. Unless otherwise specified in the solicitation, contract, or purchase order, the marshmallow cereal treats shall be processed and packaged not more than 90 days prior to delivery to the purchaser.

6. ANALYTICAL REQUIREMENTS.

6.1 Moisture content. Unless otherwise specified in the solicitation, contract, or purchase order, the moisture content of the marshmallow cereal treats shall not exceed 9.0 percent.

6.2 Product verification. When USDA verification of analytical requirements is specified in the solicitation, contract, or purchase order, the following procedures will be followed.

6.2.1 Sampling procedures. USDA inspection service will select the number of product containers based on USDA inspection service sampling procedures and plans.

6.3 Analytical testing. When specified in the solicitation, contract, or purchase order, the analyses shall be made in accordance with the following methods from the Official Methods of Analysis of the AOAC International:

Test	Method
Moisture	925.45A 1/

1/ The test shall be conducted for 16 hours at 70° C.

6.4 Test results. The test results for moisture shall be reported to the nearest 0.1 percent. Any result not conforming to the analytical requirements shall be cause for rejection of the lot.

7. MANUFACTURER'S/DISTRIBUTOR'S PRODUCT ASSURANCE. The manufacturer/ distributor shall certify that the marshmallow cereal treats provided shall meet the salient characteristics of this CID, conform to their own specifications, standards, and quality assurance practices, and be the same marshmallow cereal treats offered for sale in the commercial market. The purchaser reserves the right to require proof of conformance.

8. REGULATORY REQUIREMENTS. The delivered marshmallow cereal treats shall comply with all applicable Federal, State, and local mandatory requirements and regulations relating to the preparation, packaging, labeling, storage, distribution, and sale of marshmallow cereal treats within the commercial marketplace. Delivered marshmallow cereal treats shall comply with all applicable provisions of the Federal Food, Drug, and Cosmetic Act and regulations promulgated thereunder.

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9. QUALITY ASSURANCE PROVISIONS. *Purchaser shall specify 9.2 or 9.3; purchaser may specify 9.1 with 9.1.1 or 9.1 with 9.1.2.*

9.1 Manufacturer's quality assurance. When required in the solicitation, contract, or purchase order, the product manufacturer shall be required to provide evidence, by certificate, that the manufacturing plant has undertaken one of the following quality assurance measures within 12 months prior to providing a bid, or no later than 10 business days from the date of awarding of the contract. Failure to provide this documentation within the proper time frame may result in the contract being terminated for cause.

9.1.1 Plant systems audit. A plant systems audit (PSA) conducted by USDA ,Federal Grain Inspection Service (FGIS) or another audit performed by a third party auditing service is required within 12 months prior to the date of the awarding of the contract. *(A FGIS PSA verifies the manufacturer's capability to produce products in a clean, sanitary environment in accordance with Title 21 Code of Federal Regulations Part 110 - Current Good Manufacturing Practice in Manufacturing, Packing, or Holding Human Food, and verifies that the manufacturer has in place an internal quality assurance program. The FGIS PSA determines the manufacturer's ability to produce under this CID, if the products of interest are identified at the time of the PSA.)*

9.1.2 Plant survey. A plant survey conducted by USDA, FGIS or another survey performed by a third party auditing service and is required within 12 months prior to the date of the awarding of the contract. *(A FGIS plant survey audit verifies that, at the time of the survey, the manufacturer produces products in a clean, sanitary environment in accordance with Title 21 Code of Federal Regulations Part 110 - Current Good Manufacturing Practice in Manufacturing, Packing, or Holding Human Food.)*

9.2 Manufacturer's/distributor's certification. When required in the solicitation, contract, or purchase order, the manufacturer/distributor will certify that the finished marshmallow cereal treats distributed meets or exceeds the requirements of this CID.

9.3 USDA certification. When required in the solicitation, contract, or purchase order that product quality and acceptability or both be determined, the FGIS, USDA shall be the certifying agency. The FGIS inspectors shall certify the quality and acceptability of the marshmallow cereal treats in accordance with FGIS procedures which include selecting random samples of the packaged marshmallow cereal treats, evaluating the samples for conformance with the salient characteristics of this CID and other contractual requirements, and documenting the findings on official FGIS score sheets and/or certificates. In addition, when required in solicitation, contract, or purchase order, FGIS inspectors will examine the marshmallow cereal treats for conformance to the United States Standards for Condition of Food Containers in effect on the date of the solicitation.

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10. PACKAGING. Preservation, packaging, packing, labeling, and case marking shall be commercial unless otherwise specified in the solicitation, contract, or purchase order.

11. USDA INSPECTION NOTES. When Section 9.3 is specified in the solicitation, contract, or purchase order, USDA certification shall include evaluation of the quality and condition of samples of packaged marshmallow cereal treats, and compliance with requirements in the following areas:

- Salient characteristics (Sec. 5)
- Analytical requirements *when specified in the solicitation, contract, or purchase order* (Sec. 6.1). When USDA analytical testing is specified, FGIS inspection personnel shall select samples and submit them to the USDA, FGIS laboratory for analysis.
- Packaging requirements (Sec. 10 or as specified in the solicitation, contract, or purchase. order).

12. REFERENCE NOTES.

12.1 USDA certification contact. For USDA certification, contact the **Policies and Procedures Branch, Field Management Division, FGIS, Grain Inspection, Packers and Stockyard Administration (GIPSA), USDA, STOP 3630, 1400 Independence Avenue, SW, Washington, DC 20250-3630, telephone (202) 720-0252, Fax (202) 720-1015, or via E-mail: Henry.C.Greenwood@usda.gov or John.C.Giler@usda.gov.**

12.2 Analytical testing and technical information contacts. For USDA, FGIS technical information on analytical testing, contact the **Branch Chief, Technical Service Division, Analytical Reference and Testing Branch, FGIS Technical Center, GIPSA, USDA, 10383 North Ambassador Drive, Kansas City, Missouri 64153-1394, telephone (816) 891-0444 or via E-mail: Lynn.A.Polston@usda.gov or Tim.D.Norden@usda.gov.** For USDA, FGIS technical information contact: **Policies and Procedures Branch, FGIS, GIPSA, USDA, STOP 3630, Washington, DC 20250-3630, telephone (202) 720-1732, Fax (202) 720-1015, or via E-mail: Henry.C.Greenwood@usda.gov.**

12.3 Sources of documents.

12.3.1 Sources of information for nongovernmental documents is as follows:

Copies of the Official Methods of Analysis of the AOAC International may be obtained from: **AOAC International, 481 North Fredrick Avenue, Suite 500, Gaithersburg, MD 20877, telephone (301) 924-7077. Internet address: http://www.aoac.org.**

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12.3.2 Sources of information for governmental documents are as follows:

Applicable provisions of the Fair Packaging and Labeling Act are contained in 16 CFR Parts 500 to 503 and Federal Food, Drug, and Cosmetic Act are contained in 21 CFR Parts 1 to 199. These documents may be purchased from: **Superintendent of Documents, ATTN: New Orders, P.O. Box 371954, Pittsburgh, PA 15250-7954. Credit card (MasterCard or Visa) purchases may be made by calling the Superintendent of Documents on (202) 512-1800 or on the Internet at: http://www.access.gpo.gov/nara/cfr/index.html.**

Copies of this CID, the United States Standards for Condition of Food Containers, and beneficial comments, recommendations, additions, deletions, clarifications, etc., and any data which may improve this CID are available from and/or provided to: **Head, Food Quality Assurance Staff, FVP, AMS, USDA, STOP 0243, 1400 Independence Ave., SW, Washington, DC 20250-0243, telephone (202) 720-9939, Fax (202) 690-0102, via E-mail: FQAStaff@usda.gov or on the Internet at: http://www.ams.usda.gov/fv/fvqual.htm.**

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